

FRAMEWORK AGREEMENT FOR THE SUPPLY OF ELECTRICAL PRODUCTS

Reference WU/2022/EL-07 - DRAFT v0.4, not for signature

THIS FRAMEWORK AGREEMENT is dated 3 March 2022 and made between:

(1) Wexbury Utilities plc, a company registered in England and Wales with number 05512443 whose registered office is at Brinkholt Power Park, Brinkholt BK9 3TA ("Wexbury"); and

(2) Halbrook Electrical Distribution Ltd, a company registered in England and Wales with number 04118276 whose registered office is at Halbrook House, Marmion Way, Ellersby EL4 7QN ("the Supplier").

1 INTERPRETATION

1.1 "Call Off" means an order placed by Wexbury under this Agreement. "Products" means electrical wholesale products, including cable, cable management, wiring accessories, lighting and low voltage switchgear.

1.2 "Group Company" means a subsidiary of Wexbury within the meaning of section 1159 of the Companies Act 2006.

2 COMMENCEMENT AND DURATION

2.1 This Agreement commences on 1 June 2022 and continues until it is terminated under clause 3.

3 TERMINATION

3.1 Either party may terminate this Agreement immediately by written notice if the other commits a material breach which is not remedied within thirty days.

3.2 Either party may terminate this Agreement for convenience by giving the other not less than twelve months' written notice.

3.3 Termination does not affect Call Offs already placed, which are completed on the terms of this Agreement.

4 SCOPE

4.1 All purchases of Products by Wexbury from the Supplier are made under this Agreement.

4.2 Wexbury and any Group Company may place Call Offs. Wexbury remains liable for payment of Call Offs placed by a Group Company.

4.3 This Agreement applies to deliveries in the United Kingdom.

5 PRICES

5.1 Prices are the Supplier's published list prices less the discounts in the discount matrix issued to Wexbury and reviewed each 1 April.

5.2 The Supplier shall give Wexbury sixty days' written notice of any increase.

6 PAYMENT

6.1 Wexbury shall pay correctly rendered invoices within 90 days from the end of the month in which the invoice is dated.

6.2 Wexbury may withhold payment of a disputed invoice provided it notifies the Supplier of the dispute within twenty Business Days of receipt.

7 DELIVERY AND CARRIAGE

7.1 Delivery is included in the price for Call Offs with a net value of GBP 150 or more. Below that value the Supplier may charge carriage at its published rate.

7.2 Delivery is to the site stated in the Call Off.

8 QUALITY AND WARRANTY

8.1 The Products shall conform with the relevant British Standard and with the specification stated in the Call Off.

8.2 The Supplier shall replace or credit defective Products notified within twelve months of delivery.

9 CONFIDENTIALITY AND DATA

9.1 Each party shall keep confidential the other's confidential information for three years after the end of this Agreement.

10 PRECEDENCE AND ENTIRE AGREEMENT

10.1 In the event of conflict this Agreement prevails over the Call Off and over the Supplier's conditions of sale.

10.2 This Agreement is the entire agreement between the parties about the supply of the Products.

11 GOVERNING LAW

11.1 This Agreement is governed by the law of England and Wales and the courts of England and Wales have exclusive jurisdiction.

EXECUTION

This draft is issued for review only. Comments to Wexbury procurement by 18 March 2022.

SIGNED for and on behalf of Wexbury Utilities plc

Name: _____ Title: _____ Date: _____

SIGNED for and on behalf of Halbrook Electrical Distribution Ltd

Name: _____ Title: _____ Date: _____

DRAFT